

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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HECTOR CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. HARRY BONHOMME, Shield No. 28127, Individually and in his Official Capacity, P.O. JOSE SANTIAGO, Shield No. 15912, Individually and in his Official Capacity, P.O. JUAN MORA, Shield No. 11885, Individually and in his Official Capacity, DET. KEITH AMES, Shield No. 413, Individually and in his Official Capacity, P.O. JEFFREY HEILIG, Shield No. 7638, Individually and in his Official Capacity, and P.O.'s "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown)

Defendants.

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COMPLAINT

11 CV 9686

JURY TRIAL DEMANDED

ECF CASE

Plaintiff HECTOR CRUZ, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. §1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff HECTOR CRUZ is a Hispanic male and has been at all relevant times a resident of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

9. At all times hereinafter mentioned, the individually named defendants P.O. HARRY BONHOMME, P.O. JOSE SANTIAGO, P.O. JUAN MORA, DET. KEITH AMES, P.O. JEFFREY HEILIG, and P.O.s "JOHN DOE" #1-#10 were duly sworn police officers of

said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

THE SEPTEMBER 3, 2009 INCIDENT

13. On or about September 3, 2009 at approximately 5:30 p.m., plaintiff HECTOR CRUZ was walking lawfully in the vicinity of 169th Street and Grand Concourse in Bronx County in the City and State of New York.

14. At the aforesaid time and place defendant officers stopped their vehicle, ran toward plaintiff, immediately handcuffed his arms behind his back, and searched him, uncovering no evidence of criminal or unlawful activity whatsoever.

15. At no time on September 3, 2009 did plaintiff commit any crime or violation of law.

16. At no time on September 3, 2009 did defendants possess probable cause to arrest plaintiff.

17. At no time on September 3, 2009 did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

18. Thereafter, defendant officers transported plaintiff to a nearby precinct where they bent his fingers back, stomped his feet, and punched him about the body.

19. Defendants then subjected plaintiff to an invasive strip search which revealed no evidence of criminal or unlawful activity whatsoever.

20. At no time on September 3, 2009 did defendants possess the particularized suspicion necessary to justify an invasive strip search.

21. Defendants then transported plaintiff to Bronx Lebanon Hospital where he was sedated and subjected to an invasive cavity search.

22. Said cavity search did not reveal any evidence of criminal or unlawful activity whatsoever.

23. After completion of the cavity search, and approximately five and one half (5.5) hours after his arrest, defendants claim to have discovered a bag containing a green leafy substance in plaintiff's left hand.

24. Plaintiff was then charged with Criminal Trespass in the Second Degree, Criminal Trespass in the Third Degree, Trespass, and Unlawful Possession of Marijuana.

25. As a result of his unlawful arrest plaintiff HECTOR CRUZ spent approximately seventy-two (72) hours in police custody.

26. Additionally, plaintiff spent approximately one (1) year and (9) months making numerous court appearances causing him to miss several days from work.

26. In connection with his arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

27. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

28. Specifically, defendants falsely alleged that plaintiff trespassed at 214 East 168th Street in the Bronx, New York and that he possessed marijuana.

29. At no time on September 3, 2009 did plaintiff set foot inside of 214 East 168th Street in the Bronx, New York, possess any amount of marijuana, or behave unlawfully in any way.

30. Despite defendants actions all charges against plaintiff HECTOR CRUZ were dismissed on May 27, 2011.

31. As a result of the foregoing, plaintiff HECTOR CRUZ sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

THE SEPTEMBER 3, 2010 INCIDENT

32. On or about September 3, 2010, one year to the day from plaintiff's previous arrest, at approximately 12:40 p.m., plaintiff HECTOR CRUZ was on a lunch break from work and walking lawfully in the vicinity of 1968 Jerome Avenue in Bronx County in the City and State of New York.

33. At the aforesaid time and place defendant officers stopped their vehicle, ran toward plaintiff, immediately handcuffed his arms behind his back, and searched him uncovering no evidence of criminal or unlawful activity whatsoever.

34. Defendants then transported plaintiff to a nearby precinct where they subjected him to an invasive strip search uncovering no evidence of criminal or unlawful activity whatsoever.

35. At no time on September 3, 2010 did plaintiff commit any crime or violation of law.

36. At no time on September 3, 2010 did defendants possess probable cause to arrest plaintiff.

37. At no time on September 3, 2010 did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

38. At no time on September 3, 2010 did defendants possess the particularized suspicion necessary to justify an invasive strip search.

39. Despite the complete lack of evidence linking plaintiff to any crime or violation of law, defendants charged him with Criminal Possession of a Controlled Substance in the Seventh Degree.

40. As a result of his unlawful arrest plaintiff HECTOR CRUZ spent approximately seventy-two (72) hours in police custody.

41. Additionally, plaintiff spent approximately one year making numerous court appearances before the charges against him were dismissed on September 22, 2011.

42. In connection with his arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

43. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

44. Specifically, defendants falsely alleged that plaintiff possessed heroin.

45. As a result of the foregoing, plaintiff HECTOR CRUZ missed several days from work.

46. As a result of the foregoing, plaintiff HECTOR CRUZ sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

THE OCTOBER 9, 2010 INCIDENT

47. On or about October 9, 2010 at approximately 4:20 p.m., plaintiff HECTOR CRUZ was walking lawfully in the vicinity of E. 170th St. and College Avenue in Bronx County in the City and State of New York.

48. At the aforesaid time and place defendant officers stopped their vehicle, ran toward plaintiff, immediately handcuffed his arms behind his back, and searched him uncovering no evidence of criminal or unlawful activity whatsoever.

49. Defendants then transported plaintiff to a nearby police precinct where he was subjected to an invasive strip search revealing no evidence of criminal or unlawful activity whatsoever.

50. At no time on October 9, 2010 did plaintiff commit any crime or violation of law.

51. At no time on October 9, 2010 did defendants possess probable cause to arrest plaintiff.

52. At no time on October 9, 2010 did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

53. At no time on October 9, 2010 did defendants possess the particularized suspicion necessary to justify an invasive strip search of plaintiff.

54. Despite a complete lack of evidence connecting plaintiff to any criminal or unlawful behavior, defendants charged him with Criminal Possession of Marijuana in the Fifth Degree and Unlawful Possession of Marijuana.

55. As a result of his unlawful arrest plaintiff HECTOR CRUZ spent approximately forty-eight (48) hours in police custody.

56. Additionally, plaintiff spent approximately one (1) year and making numerous court appearances causing him to miss several days from work.

57. In connection with his arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

58. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

59. Specifically, defendants falsely alleged that plaintiff possessed marijuana.

60. Despite defendants actions all charges against plaintiff HECTOR CRUZ were dismissed on September 22, 2011.

61. As a result of the foregoing, plaintiff HECTOR CRUZ sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

THE DECEMBER 3, 2011 INCIDENT

62. On or about December 3, 2011 at approximately 5:00 p.m., plaintiff HECTOR CRUZ was walking lawfully in the vicinity of E. 169th St. and Grand Concourse in Bronx County in the City and State of New York.

63. At the aforesaid time and place defendant officers stopped their vehicle, ran toward plaintiff, immediately handcuffed his arms behind his back, and searched him uncovering no evidence of criminal or unlawful activity whatsoever.

64. Defendants then transported plaintiff to a nearby police precinct where he was subjected to an invasive strip search revealing no evidence of criminal or unlawful activity whatsoever.

65. At no time on December 3, 2011 did plaintiff commit any crime or violation of law.

66. At no time on December 3, 2011 did defendants possess probable cause to arrest plaintiff.

67. At no time on December 3, 2011 did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

68. At no time on December 3, 2011 did defendants possess the particularized suspicion necessary to justify an invasive strip search of plaintiff.

69. In total, defendants kept plaintiff HECTOR CRUZ in custody for approximately thirty-five (35) minutes before releasing him with no charges filed against him.

70. As a result of the foregoing, plaintiff HECTOR CRUZ sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2009 ARREST
FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

71. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “70” with the same force and effect as if fully set forth herein.

72. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

73. All of the aforementioned acts deprived plaintiff HECTOR CRUZ of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and

Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

74. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

75. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2009 ARREST FOR FALSE ARREST UNDER 42 U.S.C. § 1983

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “76” with the same force and effect as if fully set forth herein.

78. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

79. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2009 ARREST
FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “79” with the same force and effect as if fully set forth herein.

81. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

82. Defendants did not make a complete and full statement of facts to the District Attorney.

83. Defendants withheld exculpatory evidence from the District Attorney.

84. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff HECTOR CRUZ.

85. Defendants lacked probable cause to initiate criminal proceedings against plaintiff HECTOR CRUZ.

86. Defendants acted with malice in initiating criminal proceedings against plaintiff HECTOR CRUZ.

87. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff HECTOR CRUZ.

88. Defendants lacked probable cause to continue criminal proceedings against plaintiff HECTOR CRUZ.

89. Defendants acted with malice in continuing criminal proceedings against plaintiff HECTOR CRUZ.

90. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

91. Specifically defendants falsely alleged that plaintiff trespassed at 214 East 168th Street in the Bronx, New York and that he possessed marijuana.

92. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff HECTOR CRUZ's favor on or about May 27, 2011 when the charges against him were dismissed.

93. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2009 ARREST
FOR DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "93" as if the same were more fully set forth at length herein.

95. Defendants created false evidence against plaintiff HECTOR CRUZ.

96. Specifically defendants falsely alleged that plaintiff trespassed at 214 East 168th Street in the Bronx, New York and that he possessed marijuana.

97. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's Office.

98. Defendants misled the prosecutors by creating false evidence against plaintiff HECTOR CRUZ and thereafter providing false testimony throughout the criminal proceedings.

99. In creating false evidence against plaintiff HECTOR CRUZ, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FIFTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2009 ARREST
FOR UNLAWFUL AND UNREASONABLE
SEARCH UNDER 42 U.S.C. § 1983**

101. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "100" with the same force and effect as if fully set forth herein.

102. As a result of the foregoing plaintiff HECTOR CRUZ was subjected to an unreasonable and intrusive strip search and body cavity search that shocks the conscience in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States

103. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**SIXTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2009
ARREST FOR MUNICIPAL LIABILITY**

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "103" as if the same were more fully set forth at length herein.

105. Defendants arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrests and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

106. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

107. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

108. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- fabricating evidence against innocent persons erroneously arrested during buy-and- bust operations;
- arresting innocent persons wrongfully apprehended during buy-and-bust operations;
- arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
- conducting intrusive strip searches and body cavity inspections of arrested individuals regardless of particularized suspicion.
- falsifying evidence to cover up police misconduct; and
- deliberate indifference to training, supervision, and retention of some or all of the individually named defendants in this action in spite of notice of the persistent and recurring constitutional violations perpetuated by some or all of the individually named defendants.

109. The existence of the aforesaid unconstitutional customs and policies may be

inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Jose Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0008**
- **Maximo Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0009**
- **Angel Valentin v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 5195**
- **Nicole Scafuro v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 9362**
- **Uriel Bonilla v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 3563**
- **Alejandro Rentas v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 8043**
- **Angel Rodriguez v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 7930**
- **Angel Figueroa v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 2185**
- **Alejandro Uretia v. City of New York et al**, United States District Court, Southern District of New York **10 CV 8361**
- **Monique Clarke v. City of New York et al**, United States District Court, Southern District of New York **11 CV 2442**

110. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

111. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

112. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

113. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully.

114. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

115. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

116. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the rights:

- not to be deprived of liberty without due process of law;
- to be free from seizure and arrest not based upon probable cause;
- to be free from unwarranted and malicious criminal prosecution;
- not to have cruel and unusual punishment imposed upon him; and
- to receive equal protection under the law.

**SEVENTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2010 ARREST
FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

117. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "116" with the same force and effect as if fully set forth herein.

118. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

119. All of the aforementioned acts deprived plaintiff HECTOR CRUZ of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

120. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

121. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

122. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**EIGHTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2010 ARREST
FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

123. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “122” with the same force and effect as if fully set forth herein.

124. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

125. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**NINTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2010
ARREST FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

126. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "125" with the same force and effect as if fully set forth herein.

127. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

128. Defendants did not make a complete and full statement of facts to the District Attorney.

129. Defendants withheld exculpatory evidence from the District Attorney.

130. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff HECTOR CRUZ.

131. Defendants lacked probable cause to initiate criminal proceedings against plaintiff HECTOR CRUZ.

132. Defendants acted with malice in initiating criminal proceedings against plaintiff HECTOR CRUZ.

133. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff HECTOR CRUZ.

134. Defendants lacked probable cause to continue criminal proceedings against plaintiff HECTOR CRUZ.

135. Defendants acted with malice in continuing criminal proceedings against plaintiff HECTOR CRUZ.

136. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

137. Specifically, defendants falsely alleged that plaintiff possessed heroin.

138. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff HECTOR CRUZ's favor on or about September 22, 2011 when the charges against him were dismissed.

139. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**TENTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2010 ARREST
FOR DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

140. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "139" as if the same were more fully set forth at length herein.

141. Defendants created false evidence against plaintiff HECTOR CRUZ.

142. Specifically, defendants falsely alleged that plaintiff possessed heroin.

143. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's Office.

144. Defendants misled the prosecutors by creating false evidence against plaintiff HECTOR CRUZ and thereafter providing false testimony throughout the criminal proceedings.

145. In creating false evidence against plaintiff HECTOR CRUZ, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn

statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

146. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**ELEVENTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2010
ARREST FOR UNLAWFUL AND UNREASONABLE
SEARCH UNDER 42 U.S.C. § 1983**

147. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "146" with the same force and effect as if fully set forth herein.

148. As a result of the forgoing plaintiff HECTOR CRUZ was subjected to an unreasonable and intrusive strip search that shocks the conscience in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States

149. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**TWELVTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 3, 2010
ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

150. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "149" as if the same were more fully set forth at length herein.

151. Defendants arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrests and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

152. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

153. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

154. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- fabricating evidence against innocent persons erroneously arrested during buy-and- bust operations;
- arresting innocent persons wrongfully apprehended during buy-and-bust operations;
- arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
- conducting intrusive strip searches and body cavity inspections of arrested individuals regardless of particularized suspicion.
- falsifying evidence to cover up police misconduct; and
- deliberate indifference to training, supervision, and retention of some or all of the individually named defendants in this action in spite of notice of the persistent and recurring constitutional violations perpetuated by some or all of the individually named defendants.

155. The existence of the aforesaid unconstitutional customs and policies may be

inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Jose Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0008**
- **Maximo Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0009**
- **Angel Valentin v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 5195**
- **Nicole Scafuro v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 9362**
- **Uriel Bonilla v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 3563**
- **Alejandro Rentas v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 8043**
- **Angel Rodriguez v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 7930**
- **Angel Figueroa v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 2185**
- **Alejandro Uretia v. City of New York et al**, United States District Court, Southern District of New York **10 CV 8361**
- **Monique Clarke v. City of New York et al**, United States District Court, Southern District of New York **11 CV 2442**

156. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

157. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

158. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

159. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully.

160. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

161. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

162. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the rights:

- not to be deprived of liberty without due process of law;
- to be free from seizure and arrest not based upon probable cause;
- to be free from unwarranted and malicious criminal prosecution;
- not to have cruel and unusual punishment imposed upon him; and
- to receive equal protection under the law.

**THIRTEENTH CLAIM FOR RELIEF ARISING FROM THE OCTOBER 9, 2010
ARREST FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

163. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "162" with the same force and effect as if fully set forth herein.

164. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

165. All of the aforementioned acts deprived plaintiff HECTOR CRUZ of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

166. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

167. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

168. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**FOURTEENTH CLAIM FOR RELIEF ARISING FROM THE OCTOBER 9, 2010
ARREST FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

169. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “168” with the same force and effect as if fully set forth herein.

170. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

171. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTEENTH CLAIM FOR RELIEF ARISING FROM THE OCTOBER 9, 2010 ARREST FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

172. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "171" with the same force and effect as if fully set forth herein.

173. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

174. Defendants did not make a complete and full statement of facts to the District Attorney.

175. Defendants withheld exculpatory evidence from the District Attorney.

176. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff HECTOR CRUZ.

177. Defendants lacked probable cause to initiate criminal proceedings against plaintiff HECTOR CRUZ.

178. Defendants acted with malice in initiating criminal proceedings against plaintiff HECTOR CRUZ.

179. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff HECTOR CRUZ.

180. Defendants lacked probable cause to continue criminal proceedings against plaintiff HECTOR CRUZ.

181. Defendants acted with malice in continuing criminal proceedings against plaintiff HECTOR CRUZ.

182. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

183. Specifically defendants falsely alleged that plaintiff possessed marijuana.

184. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff HECTOR CRUZ's favor on or about September 22, 2011 when the charges against him were dismissed.

185. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**SIXTEENTH CLAIM FOR RELIEF ARISING FROM THE OCTOBER 9, 2010
ARREST FOR DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

186. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "185" as if the same were more fully set forth at length herein.

187. Defendants created false evidence against plaintiff HECTOR CRUZ.

188. Specifically, defendants falsely alleged that plaintiff possessed marijuana.

189. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's Office.

190. Defendants misled the prosecutors by creating false evidence against plaintiff HECTOR CRUZ and thereafter providing false testimony throughout the criminal proceedings.

191. In creating false evidence against plaintiff HECTOR CRUZ, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn

statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

192. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**SEVENTEENTH CLAIM FOR RELIEF ARISING FROM THE OCTOBER 9, 2010
ARREST FOR UNLAWFUL AND UNREASONABLE
SEARCH UNDER 42 U.S.C. § 1983**

193. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "192" with the same force and effect as if fully set forth herein.

194. As a result of the forgoing plaintiff HECTOR CRUZ was subjected to an unreasonable and intrusive strip search that shocks the conscience in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States

195. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without a valid warrant, probable cause, privilege or consent, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**EIGHTEENTH CLAIM FOR RELIEF ARISING FROM THE OCTOBER 9, 2010
ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

196. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "195" as if the same were more fully set forth at length herein.

197. Defendants arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrests and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

198. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

199. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

200. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- fabricating evidence against innocent persons erroneously arrested during buy-and- bust operations;
- arresting innocent persons wrongfully apprehended during buy-and-bust operations;
- arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
- conducting intrusive strip searches and body cavity inspections of arrested individuals regardless of particularized suspicion.
- falsifying evidence to cover up police misconduct; and
- deliberate indifference to training, supervision, and retention of

some or all of the individually named defendants in this action in spite of notice of the persistent and recurring constitutional violations perpetuated by some or all of the individually named defendants.

201. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Jose Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0008**
- **Maximo Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0009**
- **Angel Valentin v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 5195**
- **Nicole Scafuro v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 9362**
- **Uriel Bonilla v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 3563**
- **Alejandro Rentas v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 8043**
- **Angel Rodriguez v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 7930**
- **Angel Figueroa v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 2185**
- **Alejandro Uretia v. City of New York et al**, United States District Court, Southern District of New York **10 CV 8361**
- **Monique Clarke v. City of New York et al**, United States District Court, Southern District of New York **11 CV 2442**

202. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

203. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

204. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

205. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully.

206. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

207. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

208. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the rights:

- not to be deprived of liberty without due process of law;
- to be free from seizure and arrest not based upon probable cause;
- to be free from unwarranted and malicious criminal prosecution;
- not to have cruel and unusual punishment imposed upon him; and
- to receive equal protection under the law

**NINETEENTH CLAIM FOR RELIEF ARISING FROM THE DECEMBER 3,
2011 ARREST FOR DEPRIVATION OF FEDERAL
RIGHTS UNDER 42 U.S.C. § 1983**

209. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “208” with the same force and effect as if fully set forth herein.

210. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

211. All of the aforementioned acts deprived plaintiff HECTOR CRUZ of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

212. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

213. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

214. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**TWENTIETH CLAIM FOR RELIEF ARISING FROM THE DECEMBER 3, 2011
ARREST FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

215. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “214” with the same force and effect as if fully set forth herein.

216. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

217. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**TWENTYFIRST CLAIM FOR RELIEF ARISING FROM THE DECEMBER 3,
2011 ARREST FOR UNLAWFUL AND UNREASONABLE
SEARCH UNDER 42 U.S.C. § 1983**

218. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “217” with the same force and effect as if fully set forth herein.

219. As a result of the forgoing plaintiff HECTOR CRUZ was subjected to an unreasonable and intrusive strip search that shocks the conscience in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States

220. As a result of the aforesaid conduct by defendants, plaintiff’s person and possessions were illegally, improperly, and unreasonably searched without a valid warrant, probable cause, privilege or consent, in violation of her constitutional rights as

set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

TWENTYSECOND CLAIM FOR RELIEF ARISING FROM THE DECEMBER 3, 2011 ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

221. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "220" as if the same were more fully set forth at length herein.

222. Defendants arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrests and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

223. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

224. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

225. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- fabricating evidence against innocent persons erroneously arrested during buy-and- bust operations;
- arresting innocent persons wrongfully apprehended during buy-

and-bust operations;

- arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
- conducting intrusive strip searches and body cavity inspections of arrested individuals regardless of particularized suspicion.
- falsifying evidence to cover up police misconduct; and
- deliberate indifference to training, supervision, and retention of some or all of the individually named defendants in this action in spite of notice of the persistent and recurring constitutional violations perpetuated by some or all of the individually named defendants.

226. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Jose Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0008**
- **Maximo Colon v. City of New York et al**, United States District Court, Eastern District of New York, **09 CV 0009**
- **Angel Valentin v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 5195**
- **Nicole Scafuro v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 9362**
- **Uriel Bonilla v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 3563**
- **Alejandro Rentas v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 8043**
- **Angel Rodriguez v. City of New York et al**, United States District Court, Southern District of New York, **09 CV 7930**
- **Angel Figueroa v. City of New York et al**, United States District Court, Southern District of New York, **10 CV 2185**

- **Alejandro Uretia v. City of New York et al**, United States District Court, Southern District of New York **10 CV 8361**
- **Monique Clarke v. City of New York et al**, United States District Court, Southern District of New York **11 CV 2442**

227. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

228. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

229. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

230. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully.

231. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

232. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

233. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the rights:

- not to be deprived of liberty without due process of law;
- to be free from seizure and arrest not based upon probable

cause;

- to be free from unwarranted and malicious criminal prosecution;
- not to have cruel and unusual punishment imposed upon him; and
- to receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
December 28, 2011

BY: _____/S
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